

24CV04161 Julian Broadbery v. Ethan Light, et al.

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-06-17

Motion: Motion of Defendants Ethan Light and Pearl Light. for Terminating Sanctions or, in the Alternative, Evidentiary Sanctions, Against Plaintiff Julian Broadbery; Request for Monetary Sanctions

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/24cv04161-1>

Source SHA-256: 345d05c7909b92e6c0e8a2b9414619f31d250cc1c992968c4a196f20e9efb00c

Tentative Ruling: Julian Broadbery v. Ethan Light, et al.

Case Number

24CV04161

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 06/17/2026 - 10:00

Nature of Proceedings

Motion of Defendants Ethan Light and Pearl Light. for Terminating Sanctions or, in the Alternative, Evidentiary Sanctions, Against Plaintiff Julian Broadbery; Request for Monetary Sanctions

Tentative Ruling

For Plaintiff Julian Broadbery: Joseph S. Farzam

For Defendants Ethan Light and Pearl Light: Andrew S. Meyers, Saira M. Mejia, Straus Meyers LLP

RULING

For the reasons set forth herein, the motion of Defendants for terminating sanctions or, in the alternative, evidentiary sanctions, is granted in part and denied in part as follows:

Terminating sanctions are denied.

Plaintiff Julian Broadbery shall produce all responsive documents to Defendants' requests for production of documents no later than June 24, 2026, by 5:00 p.m.

Any responsive documents not produced, or not previously produced, shall not be admitted into evidence, by Plaintiff, at trial.

Monetary sanctions are imposed against Plaintiff's counsel, Joseph Farzam Law Firm, in the amount of \$1,715.00, payable by Plaintiff's counsel to counsel for Defendants no later than June 24, 2026.

The trial date of 8/26/26 is confirmed – again.

Background

The operative second amended complaint (SAC) in this action was filed on November 12, 2025. The SAC alleges that on July 26, 2022, while Plaintiff was delivering items to 6672 Abrego Road, Goleta, he was attacked by Defendants' dog and sustained injuries.

As the result of motions to compel by Defendants, on January 28, 2026, the Court ordered:

"The motions to compel are granted. Defendants shall serve verified written responses to the first set of form interrogatories and requests for production of documents, without objection, and shall produce all responsive documents identified in the written responses as to be produced, on or before February 18, 2026. In the absence of any opposition, the Court awards monetary sanctions, constituting reasonable attorney fees and costs, in favor of Defendants and against Plaintiff Broadbery for both motions in the total amount of \$960.00, to be paid to counsel for Defendants on or before February 18, 2026." (January 28, 2026 Minute Order.)

On April 23, 2026, Defendants filed the present motion for terminating sanctions or, in the alternative, evidence sanctions and monetary sanctions.

As of March 19, 2026, Plaintiff had not served any verified responses to Defendants' form interrogatories or requests for production of documents, nor had Plaintiff produced any responsive documents or paid the Court ordered monetary sanctions. (Mejia decl., ¶¶ 8, 9, 10.)

On June 5, 2026, Plaintiff filed opposition to the motion arguing that the discovery failures arose from internal staffing and case management failures involving previous employees of Plaintiff's counsel. Plaintiff's counsel declares that, since the filing of the present motion: "Plaintiff has served verified discovery responses and supplemental responses and has produced responsive documents presently available and within Plaintiff's possession, custody, or control. Additional supplementation has also been provided in good faith in an effort to address

concerns raised by Defendants." (Farzam decl., ¶ 6.)

By way of reply, Defendants acknowledge that discovery responses were served after the filing of the present motion, but argue:

“Crucially, a baseline analysis of these eleventh-hour responses reveals that they remain profoundly evasive, structurally incomplete, and highly conditional. Plaintiff continues to actively suppress material factual discovery. Because lesser discovery sanctions have already failed to yield compliant behavior, terminating or severe evidentiary and issue sanctions are fully warranted under California Code of Civil Procedure section 2023.030.” (Reply, p. 2, ll. 10-14.) Defendants also argue that the responses continue to be deficient and evasive.

Analysis

Evidentiary and/or Terminating Sanctions

“California’s pretrial discovery procedures are designed to minimize the opportunities for fabrication and forgetfulness, and to eliminate the need for guesswork about the other side’s evidence, with all doubts about discoverability resolved in favor of disclosure.” (Glenfed Development Corp. v. Superior Court (1997) 53 Cal.App.4th 1113, 1119.)

“Misuses of the discovery process include, but are not limited to, the following: . . .

“(d) Failing to respond or to submit to an authorized method of discovery. . . .

“(g) Disobeying a Court order to provide discovery.” (Code Civ. Proc., § 2023.010, subds. (d), (g).)

“To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the Court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process:

“(a) The Court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct. The Court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the Court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

“(b) The Court may impose an issue sanction ordering that designated facts shall be taken as established in the action in accordance with the claim of the party adversely affected by the misuse of the discovery process. The Court may also impose an issue sanction by an order prohibiting any party engaging in the misuse of the discovery process from supporting or opposing designated claims or defenses.

“(c) The Court may impose an evidence sanction by an order prohibiting any party engaging in the misuse of the discovery process from introducing designated matters in evidence.

“(d) The Court may impose a terminating sanction by one of the following orders:

“(1) An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process.

“(2) An order staying further proceedings by that party until an order for discovery is obeyed.

“(3) An order dismissing the action, or any part of the action, of that party.

“(4) An order rendering a judgment by default against that party.

“(e) The Court may impose a contempt sanction by an order treating the misuse of the discovery process as a contempt of Court.

“(f)(1) Notwithstanding subdivision (a), or any other section of this title, absent exceptional circumstances, the Court shall not impose sanctions on a party or any attorney of a party for failure to provide electronically stored information that has been lost, damaged, altered, or overwritten as the result of the routine, good faith operation of an electronic information system.

“(2) This subdivision shall not be construed to alter any obligation to preserve discoverable information.” (Code Civ. Proc., § 2023.030.)

The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 991.) A terminating sanction should generally not be imposed until the Court has attempted less severe alternatives and found them to be unsuccessful, and the record clearly shows lesser sanctions would be ineffective. (*Lopez v. Watchtower Bible and Tract Society of New York, Inc.* (2016) 246 Cal.App.4th 566, 604–605.)

“A Court has broad discretion in selecting the appropriate penalty” for a party’s refusal to obey a discovery order. (*Lopez v. Watchtower Bible & Tract Society of New York, Inc.* (2016) 246 Cal.App.4th 566, 604.)

Here, Plaintiff has admittedly failed to comply with the Court order to respond to discovery no later than February 18, 2026. As an excuse, Plaintiff’s counsel declares:

“This case was originally assigned within my office to an associate attorney who was responsible for handling discovery obligations, calendaring deadlines, and supervising the assigned paralegal on the matter. The associate attorney and the paralegal assigned to assist him are no longer employed with my firm.” (Farzam decl., ¶ 3.)

“Unbeknownst to me at the time, the assigned associate and his support staff failed to properly manage and prosecute this matter, including failing to timely comply with certain discovery obligations and Court-ordered deadlines. Their mishandling of this file was not an isolated incident and was part of broader performance and case management issues which ultimately resulted in their separation from the firm.” (Farzam decl., ¶ 4.)

“Upon discovering the extent of the deficiencies and neglect in this case, my office immediately undertook efforts to correct the issues, review the outstanding discovery, communicate with opposing counsel, and bring the Plaintiff into compliance. (Farzam decl., ¶ 5.)

“Since that time, Plaintiff has served verified discovery responses and supplemental responses and has produced responsive documents presently available and within Plaintiff’s possession, custody, or control. Additional supplementation has also been provided in good faith in an effort to address concerns raised by Defendants.” (Farzam decl., ¶ 6 & Exh. 1.)

It is axiomatic that Farzam, as Plaintiff’s attorney of record, is ultimately the attorney responsible for the handling of this case and for the supervision of subordinates who perform work on the case.

While Defendants argue that Plaintiff’s responses are still deficient in some respects, the amended responses give the parties the opportunity to further meet and confer, and, if necessary, to bring a further motion regarding the responses. The

providing of responses largely moots the present motion. However, the Court will order that Plaintiff fully comply with the order that he produce all responsive documents to the request for production of documents. If he fails to do so, evidence sanctions will be imposed that will prevent Plaintiff from introducing any non-produced documents into evidence at trial.

Monetary Sanctions

Defendants seek sanctions in the amount of \$2,625.00 for the necessity of bringing the present motion. Defendants' counsel declares:

"I spent a total of 4.8 hours researching, reviewing and preparing for Defendant's motion for order compelling responses. I anticipate having to spend an additional 1 hour reviewing Plaintiff Julian Broadbery's opposition, 3 hours preparing Defendant's reply, 1 hour attending the hearing on Defendant's motion and an estimated 6 hours round trip travel to the hearing on Defendant's motion, and \$60.00 fees associated with filing this motion. My regular billable rate on similar cases such as this is \$175.00 per hour. Therefore, Defendants request that the Court award sanctions in the amount of \$2,625.00."

"The Court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The Court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the Court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2023.030, subd. (a).)

"Plaintiff does not oppose reasonable monetary sanctions to address any inconvenience or additional work caused by the delays." (Opp., p. 4, ll. 19-21.)

Monetary sanctions will be imposed. Specifically, because he admits the failure to respond was the fault of his office, Plaintiff's counsel will be responsible for the payment of the monetary sanctions.

However, the amount will be reduced. Six hours of travel time is unreasonable. There is no need for Defendants' counsel to drive from San Diego, where his office is located, to Santa Barbara for a routine discovery hearing. Defendants' counsel has the option of appearing remotely. Therefore, the total sanctions imposed, for the present motion, shall be \$1,715.00.

Judges

Judge Thomas Anderle

Dept. 3 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

US